



### CHAPTER iii.

An Act to confirm a Provisional Order of the Minister of Health relating to the counties of Buckingham and Oxford.                      A.D. 1933.  
[29th March 1933.]

**W**HEREAS under the provisions of the Local Government Act 1888 the Minister of Health has made a provisional order which needs confirmation by Parliament :                      51 & 52 Vict. c. 41.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force.                      Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Buckingham and Oxford) Act 1933.                      Short title.]



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## SCHEDULE.

*Bucks and  
Oxon Order.*

### COUNTIES OF BUCKINGHAM AND OXFORD.

*Provisional Order made in pursuance of the Local  
Government Act 1888 altering county boundaries.*

WHEREAS by section 54 of the Local Government Act 1888 the Minister of Health is empowered to make a provisional order for the alteration of the boundary of a county;

And whereas the parish of Kingsey forms part of the administrative county of Oxford and the rural district of Bullingdon but is detached from the remainder of that rural district and the parish of Towersey in the rural district of Long Crendon forms part of the administrative county of Buckingham but is almost detached from the remainder of that county;

And whereas a joint representation has been made to the Minister of Health by the county councils of Buckingham and Oxford that it is desirable that the boundaries of the counties of Buckingham and Oxford should be altered so as to transfer the parish of Kingsey to the county of Buckingham and (subject to an adjustment of boundary) the parish of Towersey to the county of Oxford:

Now therefore the Minister of Health in pursuance of the powers given to him by section 54 of the Local Government Act 1888 and of all other powers enabling him in that behalf hereby orders as follows:—

#### PART I.

##### PRELIMINARY.

- |                 |                                                                                                                                                                                                                                                                                                                         |
|-----------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Short title.    | 1. This order may be cited as the Buckinghamshire and Oxfordshire Order 1932.                                                                                                                                                                                                                                           |
| Interpretation. | 2. In this order unless the context otherwise requires—<br>“county” means an administrative county;<br>“existing” means existing immediately before the appointed day;<br>“the Act of 1888” means the Local Government Act 1888;<br>“the appointed day” means the first day of April nineteen hundred and thirty-three; |



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“ the county councils ” means the county councils of A.D. 1933.  
 Buckingham and Oxford ;

“ the excluded part of Towersey ” means that part of the  
 parish of Towersey which is coloured yellow on the *Bucks and*  
 maps and on the enlarged key plan attached to the *Oxon Order.*  
 maps ;

“ the maps ” means the triplicate maps marked “ Map  
 “ referred to in the Buckinghamshire and Oxfordshire  
 “ Order 1932 ” and sealed with the official seal of the  
 Minister ;

“ the Minister ” means the Minister of Health ;

“ the transferred areas ” means the parish of Kingsey and  
 the transferred part of Towersey ;

“ the transferred part of Towersey ” means that part of  
 the existing parish of Towersey which is coloured  
 blue on the maps and is transferred to the county of  
 Oxford.

3. When the day on which anything is required by this Provision  
 order to be done falls on a Sunday Good-Friday or a bank holiday for Sundays  
 that thing shall be done on the next following day not being one and public  
 of the days already mentioned. holidays.

4. Save as otherwise expressly provided this order shall Commence-  
 come into operation on the first day of April nineteen hundred ment of  
 and thirty-three : order.

Provided that for the purposes of—

- (a) the alteration or re-arrangement of any register of  
 electors made under the Representation of the People  
 Acts ;
- (b) all proceedings preliminary or relating to the election  
 of a councillor directed by this order or to any other  
 election under the Local Government Act 1894 and  
 to the holding of the annual assembly of a parish  
 meeting and the business to be transacted thereat ;
- (c) the alteration of valuation lists to take effect on the  
 appointed day or the revision of any estimate of the  
 produce of a penny rate or the preparation or service  
 of any precept to be made in respect of the financial  
 year commencing on the appointed day ; and
- (d) the preparation or approval of any general rate or  
 special rate to be made in respect of a period  
 commencing on the appointed day ;

this order shall operate from the date of the Act confirming this  
 order.



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PART II.

ALTERATIONS OF AREA.

*Bucks and  
Oxon Order.*

Alterations  
of county  
boundaries.

5.—(1) The parish of Kingsey which is coloured pink on the maps shall cease to form part of the county of Oxford and shall be transferred to the county of Buckingham.

(2) That part of the existing parish of Towersey which is coloured blue on the maps shall cease to form part of the county of Buckingham and shall be transferred to the county of Oxford.

(3) That part of the existing parish of Towersey which is coloured yellow on the maps shall continue to form part of the county of Buckingham.

Alterations  
of rural  
districts and  
parishes.

6.—(1) The parish of Kingsey shall cease to form part of the rural district of Bullingdon and shall be transferred to the rural district of Aylesbury.

(2) The transferred part of Towersey shall cease to form part of the rural district of Long Crendon and shall form the parish of Towersey in the rural district of Bullingdon.

(3) The excluded part of Towersey shall cease to form part of the rural district of Long Crendon and shall be added to and form part of the parish of Ilmer (otherwise Ilmire) in the rural district of Wycombe and that parish as so extended shall be known and is in this order referred to as the parish of Ilmer.

Electoral  
divisions  
petty  
sessional  
divisions  
coroners'  
districts  
guardians  
committee  
areas and  
assessment  
areas.

7.—(1) The parish of Kingsey shall be transferred to the electoral division petty sessional division coroner's district guardians committee area and assessment area of the county of Buckingham appearing in the first schedule to this order opposite the name of the parish in column 1 of that schedule.

(2) The transferred part of Towersey shall be transferred to the electoral division petty sessional division coroner's district guardians committee area and assessment area of the county of Oxford appearing in the first schedule to this order opposite the name of that transferred part in column 1 of that schedule.

(3) The excluded part of Towersey shall be transferred to electoral division No. XXXII of the county of Buckingham to the Wycombe guardians committee area and the Wycombe and Amersham assessment area of that county and shall continue to form part of the Aylesbury petty sessional division and Aylesbury coroner's district of the county of Buckingham.

Deposit and  
copies of  
maps.

8.—(1) One of the maps shall be deposited in the office of each of the following persons namely :—

- (a) the Minister;
- (b) the clerk of the Buckingham county council; and
- (c) the clerk of the Oxford county council.



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(2) A copy of the map deposited with the clerk of the county council of Oxford certified by him to be true shall be sent by him within one month after the confirmation of this order to the clerks of the rural district councils of Aylesbury Bullingdon Long Crendon and Wycombe respectively the Board of Inland Revenue the Registrar-General the Minister of Transport and the Minister of Agriculture and Fisheries.

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9.—(1) Copies of or extracts from the map deposited with the clerk of the Buckingham county council or the clerk of the Oxford county council certified by that clerk to be true shall be received in all courts of justice and elsewhere as prima facie evidence of the contents of the maps so far as they relate to the boundary of any area altered by this order.

Copies of  
 maps to be  
 evidence.

(2) The maps so deposited shall at all reasonable times be open to inspection by any person liable to any rate leviable within any rural district which is affected by this order and any such person shall be entitled to a copy of or extract from a deposited map certified to be true by the clerk of the county council in whose office the map is deposited on payment of a reasonable fee to be determined by that clerk.

(3) All fees so received shall be carried to the county fund.

### PART III.

#### COUNTY ADMINISTRATION.

10.—(1) For the purposes of any commission of assize oyer and terminer or gaol delivery and for the purposes of sheriff lieutenant and territorial army and the making up of the jurors book and the qualification and service of jurors the parish of Kingsey shall form part of the county of Buckingham and the transferred part of Towersey shall form part of the county of Oxford.

Assizes  
 sessions  
 sheriff  
 lieutenant  
 coroner  
 territorial  
 army jurors  
 &c.

(2) The powers and duties of the quarter sessions justices sheriff coroners and clerk of the peace of a county to which an area is by this order transferred and of the police constables and other peace officers of that county shall extend to that transferred area and subject to the provisions of this order the transferred area shall for any of the purposes mentioned in this subsection cease to form part of any other county division or district.

11. Lists of prisoners writs process and particulars and all records and documents relating to or to be executed in connection with any action or proceeding pending or existing immediately before the appointed day and appertaining to either of the transferred areas shall upon the completion of any pending proceedings be delivered transferred and signed in like manner

Transfers of  
 lists of  
 prisoners  
 writs &c.



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                     — into office and as if the sheriff of the county to which the area  
                     *Bucks and* is transferred were as respects the transferred area the new  
                     *Oxon Order.* sheriff in succession to the sheriff of the county from which the  
                                          area is transferred.

County                      12. Any county road or county bridge so far as it is situate  
 roads and within either of the transferred areas shall by virtue of this  
 bridges order be transferred to and vest in the council of the county to  
 within which the area is transferred and as respects any county road or  
 transferred county bridge transferred by this section that county council  
 areas. may exercise the powers conferred and shall be subject to the  
                                          duties imposed on a county council in relation to county roads  
                                          and county bridges by Part III of the Local Government Act  
                                          1929.

Towersey                      13.—(1) For the purposes of and subject to the provisions of  
 voluntary the Education Act 1921 the following provisions shall have effect  
 school. with respect to the public elementary school which is situate  
                                          within the transferred part of Towersey :—

- (a) So much of the furniture fittings books and apparatus at the school as is vested in the county council of Buckingham shall by virtue of this order be transferred to and vest in the county council of Oxford as the local education authority for all the interest therein of the county council of Buckingham ;
- (b) All contracts debts and liabilities which immediately before the appointed day are existing or are owing by or attach to the county council of Buckingham in respect exclusively of the school or of the furniture fittings books or apparatus or with respect to the officers teachers and servants of the school shall by virtue of this order enure to and be carried into effect by and be discharged and satisfied by the county council of Oxford as the local education authority ;
- (c) Section 68 of the Local Government Act 1894 shall apply with respect to any adjustment required for the purposes of this section ;
- (d) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of the school or of the furniture fittings or apparatus thereof as is owing immediately before the appointed day and the liability for the payment of interest on that part of any such loan shall by virtue of this order be transferred and attach to the county council of Oxford as the local education authority and so much of any such loan as is then owing shall be charged on the county fund



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of Oxford and the revenues of the county council of Oxford and shall be repaid by that county council within the period (if any) for which that part of the loan was originally sanctioned or within which that part of the loan is otherwise required to be repaid or is made repayable.

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(2) Any manager of the Towersey public elementary school who was appointed by the county council of Buckingham shall vacate office on the appointed day.

14.—(1) Any reference in any scheme made by a county council under Part I of the Local Government Act 1929 to a rural district which is altered by this order shall be read as a reference to that district as so altered.

Guardians committee areas and administrative schemes.

(2) Any person who immediately before the appointed day is a representative on a guardians committee of the council of any rural district which is altered by this order shall continue to represent that council until the day on which he would have retired from office if this order had not been made.

15.—(1) Every person resident in the parish of Kingsey or in the transferred part of Towersey immediately before the appointed day who has acquired or is in the course of acquiring—

Settlement and irre-movability and transfer of liability for maintenance of poor.

(a) a settlement in the county of Buckingham or the county of Oxford by reason of residence birth or other qualification therein; or

(b) a status of irremovability from the county of Buckingham or the county of Oxford by reason of residence therein;

shall be deemed to have acquired or to be in the course of acquiring thereby as the case may require a settlement in or a status of irremovability from the county to which the area is transferred.

(2) For the purposes of this section consecutive periods of residence in any portions of the county of Buckingham or the county of Oxford shall (if and so far as those periods would immediately before the appointed day be reckoned for the purposes of determining questions of settlement in or irremovability from the county) be aggregated and shall be reckoned as continuous residence in that part of the county in which the person was residing immediately before the appointed day.

(3) Where immediately before the appointed day a person is in receipt of poor relief from either of the county councils as an inmate of an institution or of rate aid from either of the county councils as an inmate of an institution for persons of unsound mind and was resident in either of the transferred areas immediately before he last commenced to receive poor relief or rate aid he shall for the purposes of the foregoing provisions of



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(4) The liability for the cost accruing on and after the appointed day of the maintenance in any institution of any inmate of that institution to whom subsection (3) of this section applies shall by virtue of this order be transferred to and attach to the county council of Oxford or the county council of Buckingham as the case may require but this subsection shall not prevent that county council from obtaining an order of removal or an adjudication of the chargeability of any person who notwithstanding the provisions of this section is liable to be removed or made chargeable to any other county or county borough.

(5) Nothing in this section shall authorise the inclusion in any computation of a period of residence for the purposes of this section of such residence as is excluded by subsection (1) of section 93 of the Poor Law Act 1930 from a computation of residence for the purpose of the acquisition of a status of irremovability or shall prevent any residence so excluded from breaking the continuity of residence for the purpose of the acquisition by residence of a settlement.

*Insurance  
committees.*

16.—(1) The Minister may by order at any time after the confirmation of this order make such provisions as appear to him to be necessary for transferring to the insurance committee for a county to which an area is transferred such of the property rights and liabilities of the insurance committee for the county from which the area is transferred as relate to persons resident in the transferred area.

(2) An order made under this section may authorise the insurance committee for a county from which an area is transferred to continue to act as insurance committee for that area until such date not being later than the thirty-first day of December nineteen hundred and thirty-three as may be specified in the order and may for that purpose postpone the operation of this order so far as relates to the rights and duties of the respective insurance committees for the counties affected until the date so specified and may provide for such financial adjustments and may contain such other consequential and supplementary provisions as may appear to the Minister necessary or expedient.

(3) An order under this section may be revoked revised or amended by an order made in like manner as the original order.

(4) Subject to any order under this section the persons who immediately before the appointed day are members of the insurance committee for the county of Buckingham or the county of Oxford shall be deemed to have been appointed or elected



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as and shall be the members of the insurance committee for that county as altered by this order.

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17.—(1) An equitable adjustment may be made between the compensation authorities for the counties of Buckingham and Oxford respecting the interest of each of the transferred areas in any compensation fund constituted under section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

Adjustment  
for purposes  
of Licensing  
(Consolida-  
tion) Act  
1910.

(2) Any adjustment under subsection (1) of this section shall be made by agreement between the compensation authorities within twelve months after the appointed day or such extended period as may be allowed by the Secretary of State or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of any such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 as adapted and set out in the second schedule to this order and the provisions of that Act shall apply accordingly.

18. Any order of either of the county councils under the Wild Birds Protection Acts 1880 to 1908 which immediately before the appointed day is in force within an existing rural district which will on and after the appointed day comprise one of the transferred areas or the excluded part of Towersey shall extend and apply to that transferred area or excluded part in substitution for any order of a county council under those Acts which may be in force immediately before the appointed day within the transferred area or excluded part.

Wild Birds  
Protection  
Orders.

19.—(1) Any byelaws made by either of the county councils under section 11 of the Petroleum (Consolidation) Act 1928 which immediately before the appointed day are in force in the transferred part of Towersey or the parish of Kingsey shall continue to apply to those areas until those byelaws are repealed or altered and shall have effect as if they had been made by the county council of the county which will on and after the appointed day comprise the transferred part of Towersey or the parish of Kingsey as the case may be.

Byelaws of  
county  
councils and  
standing  
joint  
committees.

(2) Subject to subsection (1) of this section any byelaws made by either of the county councils or by the standing joint committee of the county of Buckingham or the county of Oxford which immediately before the appointed day are in force within an existing rural district which will on and after the appointed day comprise one of the transferred areas or the excluded part of Towersey shall extend and apply to that transferred area or excluded part in substitution for any byelaws of a county council



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A.D. 1933. or standing joint committee which immediately before the  
 — appointed day may be in force within the transferred area or  
*Bucks and* excluded part :  
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Provided that any proceedings which if this order had not been made might have been taken by either of the county councils or by the standing joint committee of the county of Buckingham or the county of Oxford for any offence committed before the appointed day within one of the transferred areas or the excluded part of Towersey against any byelaws which by virtue of this section cease to apply to an area may be taken by the county council or by the standing joint committee as the case may require and as if the byelaws had remained in force within that area.

PART IV.

PROVISIONS CONSEQUENT ON ALTERATIONS OF RURAL  
 DISTRICTS AND PARISHES.

Housing  
 scheme of  
 Long  
 Crendon  
 council.

20.—(1) Upon the appointed day the estate or interest of the Long Crendon rural district council in such of the houses provided by that council under the Housing Acts 1925 and 1930 (or any enactment repealed by the Housing Act 1925) as are situate within the transferred part of Towersey shall by virtue of this order be transferred to and vest in the Bullingdon rural district council as the authority for the execution of the Housing Acts 1925 and 1930.

(2) The property and liabilities vested in or attaching to the Long Crendon rural district council in relation to houses provided under any Act or enactment to which subsection (1) of this section applies shall be a matter for adjustment under this order.

Other  
 property and  
 liabilities  
 of rural  
 councils.

21.—(1) Any property or liabilities which immediately before the appointed day are vested in or attach to the rural district council of Long Crendon in relation exclusively to the existing parish of Towersey or any part of that parish shall by virtue of this order be transferred to vest in and attach to the rural district council of Bullingdon.

(2) Any property or liabilities which immediately before the appointed day are vested in or attach to the rural district council of Bullingdon in relation exclusively to the parish of Kingsey or any part of that parish shall by virtue of this order be transferred to vest in and attach to the rural district council of Aylesbury.

(3) Any property or liabilities which immediately before the appointed day are vested in or attach to the rural district council of Long Crendon in relation to the existing parish of Towersey conjointly with any other part of their district or in or to the rural district council of Bullingdon in relation to the parish of



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Kingsey conjointly with any other part of their district shall be a matter for adjustment under this order with the council of the rural district to which the parish is transferred.

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(4) This section shall have effect subject to the provisions of this order.

22.—(1) Any balance immediately before the appointed day in the hands of the Long Crendon rural district council which may have been derived from any special rate levied by them on the existing parish of Towersey shall be paid to the Bullingdon rural district council and any such balance in the hands of the Bullingdon rural district council in relation to the parish of Kingsey shall be paid to the Aylesbury rural district council.

Balances of rates.

(2) Any balance immediately before the appointed day in the hands of the Long Crendon rural district council or the Bullingdon rural district council in respect of the general rate of their rural district shall be a matter for adjustment under this order.

23.—(1) The parish council or representative body of any existing parish which is altered by this order shall be the parish council or representative body of that parish as so altered.

Parish councils parish meetings and representative bodies of rural parishes.

(2) All property and liabilities which immediately before the appointed day are vested in or attach to the parish council parish meeting or representative body of any existing parish which is altered by this order shall continue vested in or attach to the parish council parish meeting or representative body of that parish as so altered but shall be held or discharged by them on behalf of the altered parish.

24.—(1) Any reference in the Aylesbury Joint Hospital Order 1931 to the rural district of Aylesbury or the rural district of Long Crendon shall be read as a reference to that rural district as altered by this order and any reference in the County of Buckingham (Prevention and Treatment of Small-Pox) Regulations 1917 and 1930 to the rural district of Aylesbury or the rural district of Wycombe shall be read as a reference to that rural district as altered by this order.

Adaptation of certain orders and regulations.

(2) The parish of Kingsey shall cease to form part of the united districts constituted by the orders mentioned in subsection (3) of this section and the transferred part of Towersey as a parish within the Bullingdon rural district shall be included in each of the united districts formed by those orders.

(3) The orders referred to in subsection (2) of this section are—

- (a) the Wallingford and Crowmarsh Hospital Orders 1899 and 1928 and the Wallingford and Crowmarsh Joint Hospital Order 1904;



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(b) the Henley and Wallingford Joint Small-Pox Hospital Orders 1904 and 1915 and the South Chilterns Joint Small-Pox Hospital Order 1925;

(c) the South Oxfordshire United Districts (Medical Officer of Health) Order 1911;

all of which orders are amended by the Oxfordshire Review Order 1932.

Extension  
of adoptive  
Acts or  
orders to  
transferred  
areas and  
altered  
parishes.

25.—(1) Subject to the provisions of this order—

(a) any adoptive Act or order of a government department; or

(b) any order made by a rural district council or their predecessors;

which immediately before the appointed day is in force within the whole of any existing rural district within which a parish or a part of a parish is by this order included shall extend and apply to that parish or part of a parish in substitution for any such Act or order which may be in force in the area as forming part of the existing rural district from which the area is excluded.

(2) Any adoptive Act or order of a government department which immediately before the appointed day is in force within the parish of Kingsey or the existing parish of Towersey and does not extend to the whole of the existing rural district in which the parish immediately before the appointed day is comprised shall continue to apply to that parish subject to the substitution in any such order of the council of the rural district to which the parish is transferred for the existing rural district council in so far as the order extends to the parish.

(3) Subject to the foregoing provisions of this section any adoptive Act or order of a government department which is in force immediately before the appointed day within any rural parish which by this order is altered shall be in force within that parish as so altered.

Orders under  
Shop Hours  
Act 1904 or  
Shops Acts  
1912 to 1928.

26. Any order made under the Shop Hours Act 1904 or under the Shops Acts 1912 to 1928 and in force immediately before the appointed day in any area affected by this order shall subject to the provisions of those Acts remain in force and apply to the area to which it then applied.

Byelaws  
regulations  
and scales  
of charges  
relating to  
rural  
districts.

27.—(1) Any byelaws and any scale of charges made by the council of a rural district which is affected by this order and in force immediately before the appointed day within any parish the whole or a part of which is transferred to another rural district—

(a) if made before the first day of January nineteen hundred and twenty-three shall continue to apply to the existing



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parish in which they are in force for one year after the appointed day (unless previously repealed or altered by further byelaws) but shall on the expiration of the period aforesaid cease to be in force within any part of that parish ;

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- (b) if made on or after the first day of January nineteen hundred and twenty-three shall continue to apply to the existing parish in which they are in force until repealed or altered by further byelaws.

(2) In their application to a parish or part of a parish transferred to another rural district any byelaws and scale of charges made by the council of the rural district from which the parish or part of a parish is transferred shall have effect as if they had been made by the council of the rural district to which the parish or part of a parish is transferred.

(3) Any proceedings which if this order had not been made might have been taken by the council of a rural district from which a parish or part of a parish is by this order transferred in respect of any contravention of byelaws occurring within the transferred parish or part of a parish before the appointed day may be taken by the council of the rural district to which the parish or part of a parish is by this order transferred as if the byelaws had been made by that council.

(4) In this section the expression "byelaws" includes any regulation and the expression "scale of charges" includes any list of tolls or tables of fees or payments not prescribed by byelaws and any reference in this section to byelaws made by a rural district council shall be read as including a reference to byelaws made by the predecessors of that council.

28. Any resolution passed or other proceeding taken by any rural district council under the Town Planning Act 1925 or any enactment thereby repealed (including agreements orders and consents entered into made or given under that Act or enactment) shall in so far as it extends to land transferred to another rural district have effect in respect of that land as if the same had been passed or taken by or on behalf of the council of the rural district to which the land is transferred.

Town  
planning.

PART V.

COUNTY AND DISTRICT COUNCILLORS.

29. Any person who immediately before the appointed day represents as a county councillor any electoral division of a county which is altered by this order shall be deemed to have been elected to represent that electoral division as so altered.

County  
councillors.



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Bullingdon  
rural district  
councillors.

30.—(1) The number of rural district councillors for the Bullingdon rural district shall be increased by one and the number of rural district councillors for the Long Crendon rural district shall be reduced by one.

(2) The parish of Chinnor shall cease to be united with the parish of Kingsey for the election of rural district councillors and shall be represented on the Bullingdon rural district council by two councillors.

(3) The parish of Towersey as altered by this order shall be represented on the Bullingdon rural district council by one councillor.

(4) Any person in office immediately before the appointed day as a rural district councillor for the united parishes of Chinnor and Kingsey shall be deemed to have been elected to represent the parish of Chinnor until the fifteenth day of April nineteen hundred and thirty-three.

(5) Any person in office immediately before the appointed day as a rural district councillor for the existing parish of Towersey in the rural district of Long Crendon shall on and after that day be deemed to be a rural district councillor elected to represent the parish of Towersey as altered by this order on the rural district council of Bullingdon and shall continue in office until the day on which he would have retired from office if this order had not been made.

Aylesbury  
rural district  
councillors.

31.—(1) The number of rural district councillors for the Aylesbury rural district shall be increased by one and the parish of Kingsey shall be represented on that council by one councillor.

(2) An election of a rural district councillor for the parish of Kingsey in the rural district of Aylesbury shall be held in the year nineteen hundred and thirty-three on the ordinary day of election of Aylesbury rural district councillors.

(3) The clerk of the Aylesbury rural district council shall be the returning officer at the election :

Provided that in the event of the death inability refusal or default of that clerk the chairman of the county council of Buckingham shall in writing nominate another person to be the returning officer at the election.

(4) Subject to the provisions of this section the election shall be conducted in accordance with those provisions of the Rural District Councillors Election Rules 1931 which apply to an ordinary election of rural district councillors.

(5) The rural district councillor so elected shall come into office on the publication by the returning officer of notice of the result of the election and shall retire from office on the fifteenth day of April nineteen hundred and thirty-six.



A.D. 1933.

32. The person who immediately before the appointed day is in office as rural district councillor for the existing parish of Ilmer (otherwise Illmire) shall become the rural district councillor for the parish of Ilmer and shall continue in office until the day on which he would have retired from office if this order had not been made.

*Bucks and  
Oxon Order.*  
Rural  
district  
councillor  
for Ilmer.

33. Subject to the provisions of this order any casual vacancy which may exist immediately before the appointed day in the office of rural district councillor for the existing parish of Ilmer (otherwise Illmire) or for the existing parish of Towersey shall be filled by the election of a rural district councillor for that parish as altered by this order and as respects the parish of Towersey as so altered by the election of a councillor to represent that parish on the rural district council of Bullingdon.

Filling  
of casual  
vacancies.

34.—(1) For the purposes of the determination of the qualification of a person for election after the appointed day as a county councillor or district councillor the alterations of counties and districts made by this order shall be deemed to have had effect on the first day of February nineteen hundred and thirty-two.

Qualification  
for election  
as a county  
councillor  
or district  
councillor.

(2) Any person who is to continue in office after the appointed day as a county councillor or district councillor shall not during his present term of office be deemed to lose his qualification by reason of any alteration of area made by this order.

## PART VI.

### RATING AND VALUATION.

35.—(1) The County of Buckingham (Assessment Areas and Assessment Committees) Scheme 1926 shall have effect as if for references to the existing rural district of Aylesbury the existing rural district of Long Crendon and the existing rural district of Wycombe there were substituted references to those rural districts respectively as altered by this order.

Assessment  
areas and  
committees.

(2) The County of Oxford (Assessment Areas and Assessment Committees) Scheme 1932 shall have effect as if for references to the existing rural district of Bullingdon there were substituted references to that rural district as altered by this order.

(3) Any person who immediately before the appointed day represents on an assessment committee the council of any rural district which is altered by this order shall continue to represent that council on that assessment committee until the day on which he would have retired from office if this order had not been made.



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—  
*Bucks and*  
*Oxon Order.*  
Valuation  
lists.

36.—(1) Those divisions of the valuation list of an existing rural district which relate to hereditaments within the parish of Kingsey and the existing parish of Towersey shall before the twentieth day of March nineteen hundred and thirty-three be forwarded by the clerk of the council of the rural district from which the parish is transferred to the clerk of the council of the rural district to which the parish is transferred and shall be incorporated with the valuation list of that rural district.

(2) Where a parish by this order is transferred from one assessment area to another assessment area the clerk of the assessment committee of the area from which the parish is transferred shall before the appointed day forward to the clerk of the assessment committee of the area to which the parish is transferred the copy in his possession of the division of the valuation list which relates to that parish for incorporation with the copy of the valuation list of the rural district to which the parish is transferred.

Rating of  
owners and  
allowance of  
discount.

37. Any direction given by a rural district council as to the rating of owners or the allowance of a discount in respect of rates which may be in force in a rural district which is altered by this order shall extend and apply to that rural district as so altered until that direction is revoked or varied by the council of the altered rural district.

Arrears  
of rates.

38. All rates not collected immediately before the appointed day in respect of hereditaments within any parish or part of a parish transferred from one rural district to another rural district shall be collected and recovered (as if this order had not been made) by the council of the rural district from which the area is transferred or by the proper officer of that council.

Transfer of  
books and  
documents.

39. All books and documents relating to rating or valuation which contain entries relating exclusively to the parish of Kingsey or the existing parish of Towersey shall be transferred as soon as may be after the appointed day by the clerk of the rural district council or clerk of the assessment committee having the custody of the book or document to the clerk of the council of the rural district or clerk of the assessment committee of the area to which the parish of Kingsey or the transferred part of Towersey is transferred.

Precepts of  
county  
councils and  
other local  
authorities.

40.—(1) Precepts of the county councils of Buckingham and Oxford for the financial year commencing on the appointed day shall be based on each of the counties and rating areas as altered by this order and shall be sent to the rating authorities as soon as practicable after the confirmation of this order by Parliament.

(2) Each of the county councils may make such adaptations and alterations of the estimates of the produce of a rate of a



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penny in the pound furnished to them by any rating authority as may be necessary to bring those estimates into conformity with the alterations of the counties and rating areas made by this order.

A.D. 1933.

—  
*Bucks and*  
*Oxon Order.*

(3) It shall be the duty of the clerk of any rating authority to supply either of the county councils with such information as may be necessary for the purposes of subsection (2) of this section.

(4) Notwithstanding the alterations of area effected by this order all precepts made by any local authority in respect of a financial period commencing before the appointed day shall be as valid in law as if this order had not been made.

PART VII.

OFFICERS.

41. In this part of this order unless the context otherwise requires—

Meaning in  
this part of  
certain  
expressions.

“compensating authority” means an authority to whom an application for compensation under this part of this order is made;

“local authority” means a local authority as defined in section 3 of the Local Government and other Officers’ Superannuation Act 1922 and includes the standing joint committee of a county;

“officer” includes any officer or servant whose remuneration is paid by a local authority and any teacher employed in a public elementary school which is maintained by a local education authority.

42.—(1) Every officer in office on the date of the confirmation of this order and not holding a temporary appointment which expires before the appointed day who by virtue of this order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office by determination of his appointment or by diminution or loss of fees salary or emoluments (and for whose compensation for that loss no other provision is made by any enactment for the time being in force) shall be entitled to compensation under this order for that loss.

Compensa-  
tion to  
officers.

(2) Any claim by an officer of a rural district council to compensation under subsection (1) of this section shall be made to the council of the rural district which on and after the appointed day will comprise the parish or part of a parish by reason of the transfer of which a direct pecuniary loss arises and any compensation payable by that council shall be defrayed from the general rate of the rural district.



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—  
*Bucks and  
Oxon. Order.*

(3) Any claim by any other officer to compensation under subsection (1) of this section shall be made to the county council of the county which on and after the appointed day will comprise the parish or part of a parish by reason of the transfer of which a direct pecuniary loss arises and any compensation payable by that council shall be defrayed as expenses for general county purposes.

(4) For the purposes of this section any officer whose office is abolished or whose appointment is determined or whose fees salary or emoluments are reduced within five years after the appointed day because his services are not required or his duties are diminished and not on the ground of misconduct shall be deemed unless the contrary is shown to have suffered a direct pecuniary loss in consequence of this order.

Determina-  
tion of com-  
pensation.

43.—(1) In determining the compensation payable to any person who becomes entitled to compensation under this order regard shall be had to the conditions and circumstances mentioned in subsection (1) of section 120 of the Act of 1888 and the compensation shall not exceed the limit therein mentioned.

(2) For the purposes of the determination and payment of compensation to officers under this order the provisions of section 120 of the Act of 1888 shall apply subject to the following and any necessary modifications :—

(a) Any reference in that section to the county council shall be construed as a reference to the compensating authority and in subsection (7) of that section for the words “the same or any other county council” there shall be substituted the words “the council of any county or county borough or under any district council” and there shall be added to the subsection the words “For  
“ the purposes of this subsection a teacher in a public  
“ elementary school maintained but not provided by a  
“ council shall be deemed to hold an office under the  
“ council”;

(b) References in that section to “the passing of this Act” shall be construed as references to the date on which the abolition of office or the determination of the appointment takes effect or the direct pecuniary loss commences as the case may require; and

(c) The expression in subsection (1) of that section “the Acts and rules relating to Her Majesty’s Civil Service” shall mean the Acts and rules relating to Her Majesty’s Civil Service which were in operation at the date of the passing of the Act of 1888.

(3) In computing the service of any officer for the purpose of the award of compensation the compensating authority shall



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take into account all the service of that officer after he attained the age of eighteen years under any local authority : A.D. 1933.

Provided that where the officer held two or more offices and the claim for compensation is based on a loss of one or some only of those offices account shall not be taken under this subsection of service in an office which the officer continues to hold unless throughout the period of his service in that office he devoted the whole of his time to the duties of offices held by him under one or more local authorities.

*Bucks and  
Oxon Order.*

(4) The compensation payable under this order to an officer who immediately before the appointed day shall hold two or more offices under one or more local authorities and who shall have devoted the whole of his time to the duties of such offices shall not be reduced by reason of the fact that he has devoted only part of his time to each of those offices and for the purpose of this subsection a superintendent registrar registrar of births and deaths or registrar of marriages shall be deemed to hold an office under a local authority.

(5) If any officer was temporarily absent from his employment during the late war whilst serving in His Majesty's forces or the forces of the Allied or Associated Powers either compulsorily or with the sanction or permission of the local authority such period of temporary absence shall be reckoned as service under the local authority in whose employment he was immediately before and after such temporary absence :

Provided that in the case of an officer who after the armistice voluntarily extended his term of service with the forces no period of absence during such extension shall be so reckoned.

(6) The compensating authority may in their discretion and in consideration of the fact that any officer was appointed to his office as a specially qualified person or of the fact that the officer before his appointment had been employed as a deputy assistant or clerk by a permanent officer for the purpose of the discharge of his official duties add any number of years (not exceeding ten) to the number of years which that officer would otherwise be entitled to reckon for the purpose of computing the compensation to which he would be entitled under the Acts and rules relating to Her Majesty's Civil Service as applied by this order.

(7) All fees or remuneration received and retained by an officer in connection with the preparation of the jurors book or the register of electors under the Representation of the People Acts shall subject to a reasonable deduction for any expenses incurred by the officer be regarded as part of the emoluments of the officer for the purpose of compensation.



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*Bucks and  
Oxon Order.*  
Compensa-  
tion and  
superannua-  
tion.

44. No service of which account has been taken in assessing the compensation payable under this order to an officer in respect of the determination of any appointment held by him shall in the event of his accepting any other office after the appointed day be reckoned for the purpose of computing any sum payable in respect of that office under any superannuation scheme or other scheme for ensuring benefits to an officer on retirement whether under any enactment or otherwise.

PART VIII.

SUPPLEMENTARY.

Financial  
adjustments.

45.—(1) Where in consequence of any alteration of areas or authorities made by this order any adjustment of any property income debts liabilities or expenses so far as they are affected by the alteration is required an adjustment shall be made between the councils or other authorities affected under and in accordance with section 62 of the Act of 1888 as set out and adapted in the second schedule to this order.

(2) Section 62 of the Act of 1888 as adapted by this order shall extend to any question which may arise in consequence of the alteration of county boundaries made by this order as to the financial relations (including the distribution of any moneys) between the county councils and subsection (6) of section 32 of the Act of 1888 which relates to the revision of financial adjustments shall extend to any financial adjustment made under this subsection.

(3) This section shall not extend to any matter for the adjustment of which special provision as to the method of adjustment is made by any enactment regulation or by this or any other order.

(4) Nothing in this order shall be deemed to authorise or require an adjustment of property or liabilities by reason of the transfer of the excluded part of Towersey to another rural district or parish.

Qualifying  
period for  
local  
government  
electors.

46. For the purposes of the registers of local government electors prepared in the year nineteen hundred and thirty-three and of all matters connected with incidental to or consequent upon those purposes each of the transferred areas shall be deemed to have formed part of the county to which it is transferred as from the twenty-eighth day of February of that year.

Duplicate  
entries in  
electors  
lists.

47.—(1) On the publication of the electors lists the lists of objections to the electors lists the lists of claimants and the lists of objections to claimants the registration officer of the parliamentary county of Bucks shall supply the registration officer of



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the parliamentary county of Oxford and the registration officer of the parliamentary county of Oxford shall supply the registration officer of the parliamentary county of Bucks with a sufficient number of copies of those lists for each registration unit comprising one of the transferred areas and shall forthwith notify the registration officer to whom the copies are forwarded of his decisions on any objections or claims in respect of any such registration unit.

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*Bucks and*  
*Oxon Order.*

(2) It shall be the duty of the registration officer of the parliamentary county of Bucks in respect of the administrative county of Buckingham as altered by this order and of the registration officer of the parliamentary county of Oxford in respect of the administrative county of Oxford as so altered to issue such notices and otherwise to take such steps as are required by rule 23 in the first schedule to the Representation of the People Act 1918 in order to secure that no person is registered as a local government elector in respect of more than one qualification in the same electoral division of the administrative county for the purpose of county council elections or in the same parish for the purpose of rural district council or parish council elections.

(3) Where a registration officer considers (whether on account of an expression of choice by a person affected by a duplicate entry or otherwise) that any correction required for the purpose aforesaid should be made in the electors list of any registration unit comprising one of the transferred areas he shall forthwith notify the registration officer of the parliamentary county of Oxford or Bucks (as the case may require) and that officer shall make the correction accordingly.

(4) This section shall apply to the preparation of the register of electors in the year nineteen hundred and thirty-three and later registers of electors.

48.—(1) If the register of local government electors for an electoral area affected by this order is not so framed as to show the persons entitled to vote at an election or parish meeting to be held for an electoral division parish or ward or other voting area—

Alteration or  
re-arrange-  
ment of local  
government  
register.

(a) the registration officer of the parliamentary county of Bucks in the case of an election or parish meeting for any voting area within the county of Buckingham as altered by this order; and

(b) the registration officer of the parliamentary county of Oxford in the case of an election or parish meeting for any voting area within the county of Oxford as altered by this order;

shall make such alteration or re-arrangement of the register as may be necessary for the purposes of that election or parish meeting.



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Oxon Order.*

(2) It shall be the duty of the clerk of the council of any rural district affected by this order and of any officer designated by any such council for the performance of the duties of overseers in relation to the preparation of the register of electors to render such assistance as may be required by a registration officer for the purpose of any alteration or re-arrangement authorized by this section.

(3) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary or desirable to give effect to the provisions of this section and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Transfer of  
entries in  
local land  
charges  
registers.

49.—(1) Within fourteen days after the appointed day the local registrar for the county of Buckingham under the Land Charges Act 1925 and the rules made thereunder shall supply to the local registrar for the county of Oxford an office copy of every entry in his register relating to land within the transferred part of Towersey and the local registrar for the county of Oxford shall supply to the local registrar for the county of Buckingham an office copy of every entry in his register relating to land within the parish of Kingsey.

(2) The local registrar for any rural district from which land is transferred by this order shall within fourteen days after the appointed day supply to the local registrar for the rural district to which the land is transferred an office copy of every entry in his register relating to that land.

(3) The local registrar by whom an office copy is supplied under this section shall be paid in respect of that copy by the council to whose officer the copy is supplied such fees as are prescribed by the rules made under the Land Charges Act 1925.

(4) A local registrar by whom an office copy is received under this section shall within fourteen days after its receipt enter the particulars contained therein with any necessary modifications in the appropriate part of his local land charges register.

Transitory  
provisions  
as to local  
land charges  
registers.

50. Until the entries required by the preceding section of this order are made or until the expiration of one month after the appointed day whichever shall be the earlier the following provisions shall have effect in respect of land which is transferred to another county or rural district by this order :—

(1) Where after the appointed day application is made by any person for a personal search in the register of—

(a) the county of Buckingham in respect of land within the parish of Kingsey; or



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(b) the county of Oxford in respect of land within the transferred part of Towersey; or A.D. 1933.

(c) any rural district to which a parish or part of a parish is transferred in respect of land within that parish or part of a parish; *Bucks and Oxon Order.*

the local registrar by whom the application is received shall give notice to the applicant that an additional search should be made in the register of the county or rural district from which the area is transferred and where application is made for an official search shall issue free of charge a certificate of official search in his register and shall forward to the local registrar for the county or rural district from which the land is transferred the application received by him together with the fees paid in respect thereof:

(2) The local registrar for the county or rural district from which an area is transferred shall permit and make such searches and furnish such office copies and certificates as he would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as if this order had not been made:

(3) Where an entry of a local land charge which has been duly made in the local land charges register of a county or rural district from which land is transferred is required by the preceding section of this order to be transferred from that register to another register such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the register to which it is required by this order to be transferred.

51.—(1) The scheme of the Long Crendon rural district council under the Housing (Rural Workers) Act 1926 shall cease to apply to the existing parish of Towersey and the scheme of the county council of Oxford under that Act shall cease to apply to the parish of Kingsey. *Housing (Rural Workers) Act 1926.*

(2) The scheme of the county council of Oxford under the Housing (Rural Workers) Act 1926 shall extend and apply to the transferred part of Towersey the scheme of the Aylesbury rural district council under that Act shall extend and apply to the parish of Kingsey and the scheme of the Wycombe rural district council under that Act shall extend and apply to the excluded part of Towersey.



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Appoint-  
ment of  
trustees of  
certain  
charities.

52. Any power of appointing trustees of a charity subject to the jurisdiction of the Charity Commissioners which was exerciseable immediately before the appointed day by any county council district council parish council or parish meeting and which ceases to be exerciseable in consequence of the transfer by this order of a parish to another county or district or any change in the area of a parish made by this order may after the appointed day be exercised by such county council district council parish council or parish meeting as the Charity Commissioners may direct but nothing in this section shall in any way prejudice or affect the power of the Charity Commissioners under the Charitable Trusts Acts 1853 to 1925 to establish a scheme for the regulation of the charity.

Savings for  
jury service  
and pending  
proceedings  
before  
justices and  
coroners.

53. Notwithstanding the alterations of area made by this order—

- (1) Until the jurors books prepared next after the appointed day come into force each of the transferred areas shall for the purposes of summoning jurors and of jury service be deemed to continue to form part of the existing county in which it is comprised; and
- (2) Every person committing an offence in either of the transferred areas or any parish which is altered by this order prior to the appointed day shall be tried and dealt with as if this order had not been made and every proceeding which prior to the appointed day has been begun by or before any court or justice or coroner in relation to any matter arising in or concerning either of the transferred areas or any parish which is altered by this order may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this order had not been made.

Parish books  
and docu-  
ments.

54. Any ratepayer or inhabitant of any parish which by this order is altered shall at all times have the right of inspection and of making extracts from the books or documents of that parish which he would have had if this order had not been made.

Appointment  
of parish  
constables.

55. For the purposes of the appointment of parish constables the parish of Kingsey shall as from the passing of the Act for the confirmation of this order be deemed to form part of the county of Buckingham and the transferred part of Towersey shall as from that date be deemed to form part of the county of Oxford.

Saving for  
registration  
districts and  
sub-districts.

56. In any scheme made by either of the county councils or the Registrar-General under section 24 of the Local Government Act 1929 affecting either of the transferred areas regard shall be had to the provisions of this order but until the date on which such a scheme comes into operation nothing in this order shall



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affect the area of any existing registration district or sub-district for the purposes of births deaths or marriages without prejudice however to the exercise of the powers contained in the Births and Deaths Registration Acts 1836 to 1929 as to the alteration of registration districts or sub-districts.

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*Bucks and*  
*Oxon Order.*

57.—(1) No alteration effected by this order shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any local authority or any contract deed bond agreement or other instrument (subsisting immediately before the appointed day) entered into or made by any local authority :

Saving for  
contracts  
legal  
proceedings  
&c.

Provided that—

- (a) Any action cause of action or proceeding by or against a county council or rural district council in relation exclusively to a parish or part of a parish which is transferred to another county or rural district may be prosecuted and enforced by or against the council of the county or rural district to which the area is transferred;
- (b) Any proceedings pending immediately before the appointed day before any assessment committee in relation to hereditaments which are transferred from one assessment area to another assessment area shall be continued subject to the substitution of the assessment committee of the area to which the hereditaments are transferred for the assessment committee of the area from which the hereditaments are transferred;
- (c) Any such instrument entered into or made by a county council or rural district council in relation exclusively to a parish or part of a parish which is transferred to another county or rural district shall be of as full force and effect against or in favour of the council of the county or district to which the area is transferred and may be enforced as fully and effectually as if instead of the authority named in the instrument the council of the county or district to which the area is transferred had been a party thereto.

(2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary to bring them into conformity with the provisions of this order.

(3) Any reference in this section to a local authority shall be read as including a reference to the predecessors of that local authority.



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—  
*Bucks and*  
*Oxon Order.*  
 Other  
 savings.

58. Nothing in this order shall—

- (1) restrict the powers of the Secretary of State the Minister or any county council under the Act of 1888 the Local Government Act 1894 or the Local Government Act 1929;
- (2) affect the powers of either of the county councils for the division of a parliamentary county into polling districts for parliamentary elections or for the division of their county into polling districts for the election of county councillors or any existing order or scheme for either of those purposes or for naming the polling places at any election;
- (3) alter the area for the supply of gas water or electricity by any company body or local authority under any local Act or any provisional order confirmed by Parliament or under any order made in pursuance of the Gas Undertakings Acts 1920 to 1932 or the Electricity (Supply) Acts 1882 to 1928 or prejudice or affect the existing powers or charges of any such company body or local authority under any such Act or order;
- (4) save as in this order expressly provided with respect to the appointment of trustees of certain charities prejudice vary or affect any power right interest or jurisdiction in or over any charitable endowment; or
- (5) affect the area within which any bishop parson or other ecclesiastical person has any cure of souls or jurisdiction.

Effect of  
 regulations  
 of Minister.

59. This order shall have effect subject to the provisions of any regulations made or to be made by the Minister under part VI of the Local Government Act 1929 with respect to grants payable under that part of that Act.

Repeal of  
 provisional  
 order of  
 1895.

60. So much of the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1895 Session 2 as relates to the County of Oxford (Kingsey) Order 1895 is hereby repealed.



SCHEDULES.

A.D. 1933.

Bucks and  
Oxon Order.

FIRST SCHEDULE.

TRANSFERRED PARISH OR PART OF PARISH AND ELECTORAL  
DIVISION PETTY SESSIONAL DIVISION CORONER'S DISTRICT  
GUARDIANS COMMITTEE AREA AND ASSESSMENT AREA TO  
WHICH IT IS TRANSFERRED.

| Transferred<br>parish or part of<br>parish and county<br>to which<br>transferred. | Electoral<br>Division. | Petty<br>Sessional<br>Division. | Coroner's<br>District. | Guardians<br>Committee<br>Area. | Assessment<br>Area. |
|-----------------------------------------------------------------------------------|------------------------|---------------------------------|------------------------|---------------------------------|---------------------|
| 1.                                                                                | 2.                     | 3.                              | 4.                     | 5.                              | 6.                  |
| COUNTY OF<br>BUCKINGHAM.                                                          |                        |                                 |                        |                                 |                     |
| The parish of Kingsey                                                             | No.XXVII               | Aylesbury                       | Aylesbury              | Aylesbury                       | Aylesbury           |
| COUNTY OF OXFORD.                                                                 |                        |                                 |                        |                                 |                     |
| The transferred part<br>of Towersey.                                              | Chinnor                | Watlington                      | Southern               | Bullington                      | South<br>Central    |

SECOND SCHEDULE.

SECTION 62 OF THE LOCAL GOVERNMENT ACT 1888  
AS ADAPTED BY THIS ORDER.

62.—(1) Any councils or other authorities affected by any alteration of areas or authorities made by the Buckinghamshire and Oxfordshire Order, 1932, may from time to time make agreements for the purpose of adjusting any property, income, debts, liabilities, and expenses (so far as affected by the alteration) of the parties to the agreement, and the agreement may provide for the transfer or retention of any property, debts, and liabilities, with or without any conditions, and for the joint use of any property, and for the transfer of any duties, and for payment by either party to the agreement in respect of property, debts,



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A.D. 1933. duties, and liabilities so transferred or retained, or of such joint  
— user, and in respect of the salary, remuneration or compensation  
*Bucks and* payable to any officer or person, and that either by way of a  
*Oxon Order.* capital sum, or of a terminable annuity for a period not exceeding  
that allowed by the Minister.

(2) In default of an agreement as to any matter requiring adjustment, such adjustment may be made by an arbitrator appointed by the parties, or in case of difference as to the appointment, appointed by the Minister.

(3) An arbitrator appointed under this section shall be deemed to be an arbitrator within the meaning of the 'Lands Clauses Consolidation Act, 1845, and the Acts amending the same, and the provisions of those Acts with respect to an arbitration shall apply accordingly; and, further, the arbitrator may state a special case, and notwithstanding anything in the said Acts, shall determine the amount of the costs, and shall have power to disallow as costs in the arbitration the costs of any witness whom he considers to have been called unnecessarily, and any other costs which he considers to have been incurred unnecessarily.

(4) Any award or order made by any arbitrator under this section may provide for any matter for which an agreement might have provided.

(5) Any sum required to be paid by a council or other authority for the purpose of adjustment, or of any award made by an arbitrator under this section, may be paid out of such fund or rate as may be specified in the agreement of adjustment or award, or if no fund or rate is so specified, either out of the fund or rate from which the general expenses of the council or authority are defrayed, or out of such special fund or rate as the council or other authority with the approval of the Minister may direct.

(6) The payment by any council or other authority of any capital sum required to be paid for the purposes of the adjustment, or of any award or order of an arbitrator, shall be a purpose for which the council or other authority may borrow under any public general or local Act conferring on them a power to borrow, and any such sum may be borrowed on the security of all or any of the funds, rates, and revenues of the council or other authority, and either by the creation of stock or in any other manner in which they are for the time being authorised to borrow, and such sum may be borrowed without the consent of any authority, so that it be repaid within such period as the Minister may sanction, by equal yearly or half-yearly instalments of principal, or of principal and interest combined, or by means of a sinking fund or stock redemption fund set apart, invested and applied in accordance with the Act under which the money is borrowed, or with the



[23 GEO. 5.]                      *Ministry of Health*                      [Ch. iii.]  
*Provisional Order Confirmation (Buckingham and Oxford)*  
*Act, 1933.*

regulations which apply to stock created by the council or other authority. A.D. 1933.

(7) Any capital sum paid to any council or other authority for the purpose of any adjustment, or in pursuance of any award of an arbitrator under this section, shall be treated as capital, and applied, with the sanction of the Minister, either in the repayment of debt or for any other purpose for which capital money may be applied. *Bucks and  
Oxon Order.*

(8) If it is necessary for the purpose of giving effect to any agreement or award of adjustment that a separate rate should be levied in part only of a rating area or parish, the agreement or award may authorise the levy of an additional item of the general rate, or a special rate, over the part of the rating area or parish.

(9) In this section, the expression " the Minister " means the Minister of Health.

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